

**NEW YORK CITY
CIVILIAN COMPLAINT REVIEW BOARD**

Date statute expires: June 9, 1996

EXPEDITED CLOSING FORM

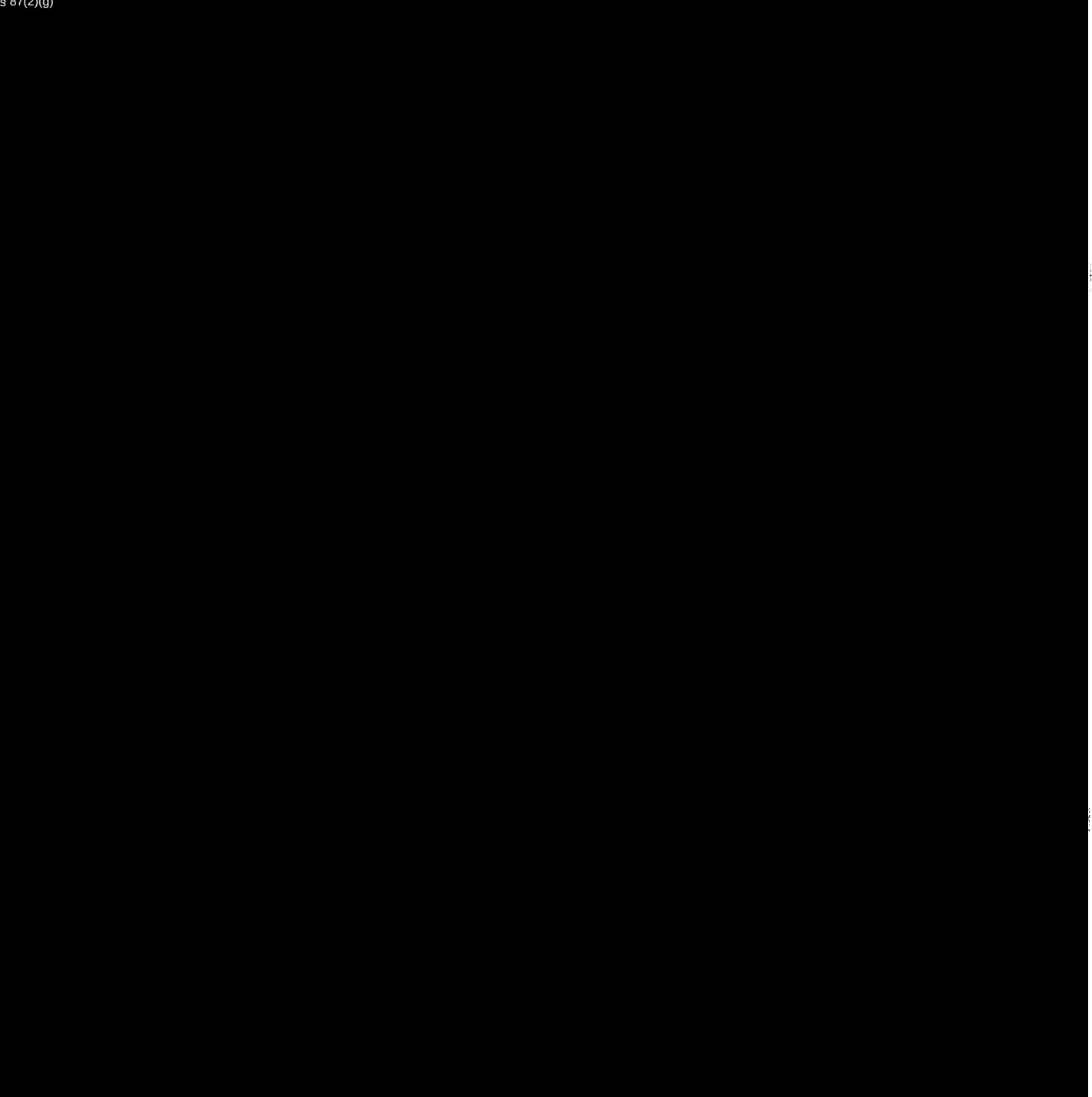
This investigation arose when § 87(2)(b) complainant filed a CCRB COMPLAINT alleging that the taxi cab driver § 87(2)(b) was subject to misconduct. She alleges the subject officer pushed § 87(2)(b) against his taxi cab, and cursed at him.

Investigator: Inv. R Azcui	Team :	C.C.R.B No.: 9404810	F.A..D.O: F.A.D.	Pct.: 020
Date and Time of Incident: 12-09-94 at 8:25 P.M.		Date and Time Reported: 12-09-94 AT 9:11 P.M.	Location: 80TH STREET/BROADWAY	
§ 87(2)(b)	Address § 87(2)(b)		Telephone # § 87(2)(b)	Relationship: NONE
§ 87(2)(b)	§ 87(2)(b)			NONE
Witness(es) none				
Subject Police Officer(s) Michael Pilecki		Rank: SGT.	Shield: 02333	Tax No.: 880208
		Command: 020	Allegation(s) (A) FORCE: PUSH/SHOVE (B) ABUSE: THREAT OF ARREST (C) DISC: CURSE	
Witness(es) Police Officer (s) Michael Sullivan		Rank: P.O.	Shield: 04531	Tax No.: 886558
		Command: 020	Relationship partner	

- 1) Is complainant a witness to the incident: (X) Yes () No () N/A
 A) Was the complainant or victim arrested: () Yes (X) No, Explain:
 B) Did complainant or victim receive a summon(es): (X) Yes () No, Explain:
 § 87(2)(b) was issued two summonses by P.O. Sullivan § 87(2)(b)
 § 87(2)(b)
 C) Did the complainant or victim sustain injuries: () Yes (X) No, Explain:
 D) Did the complainant or victim seek medical attention: () Yes (X) No
 E) Was NYPD documents prepared: () UF 250 () UF 61 () UF 49 () N/A ()
 Other: SUMMONSES

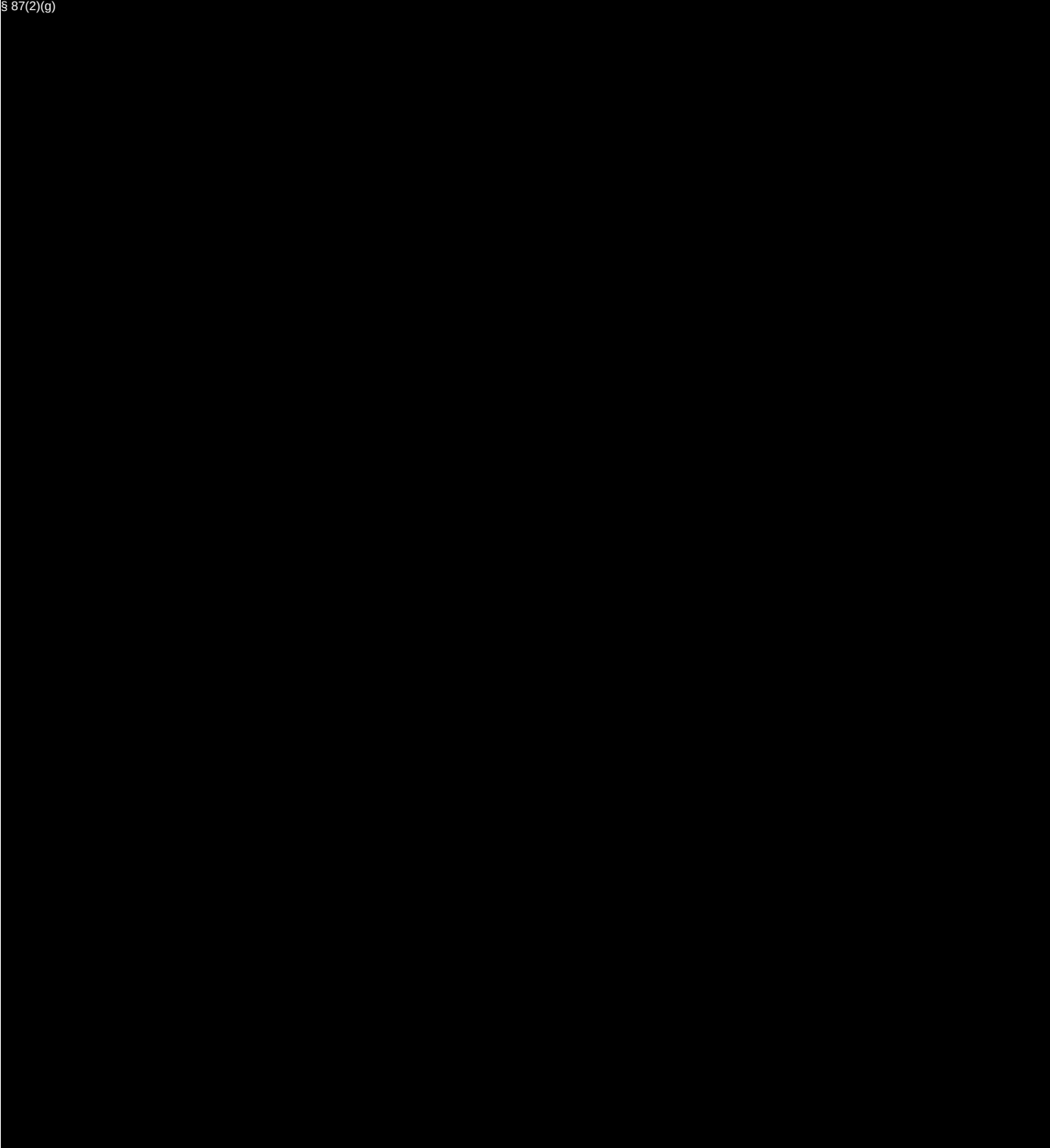
Closing Report: CCRB 9404810

§ 87(2)(g)



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§ 87(2)(g)



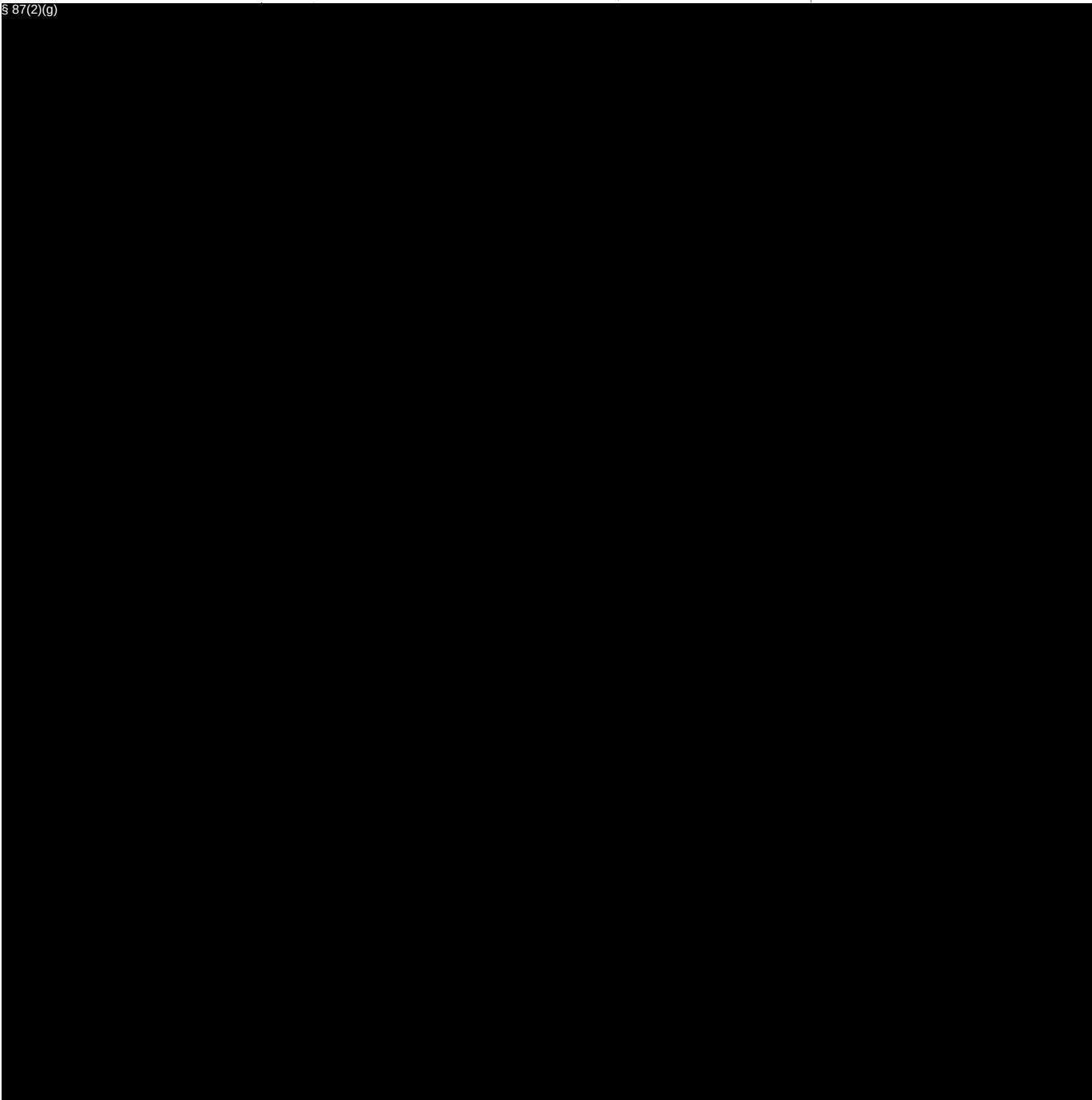
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§ 87(2)(g)



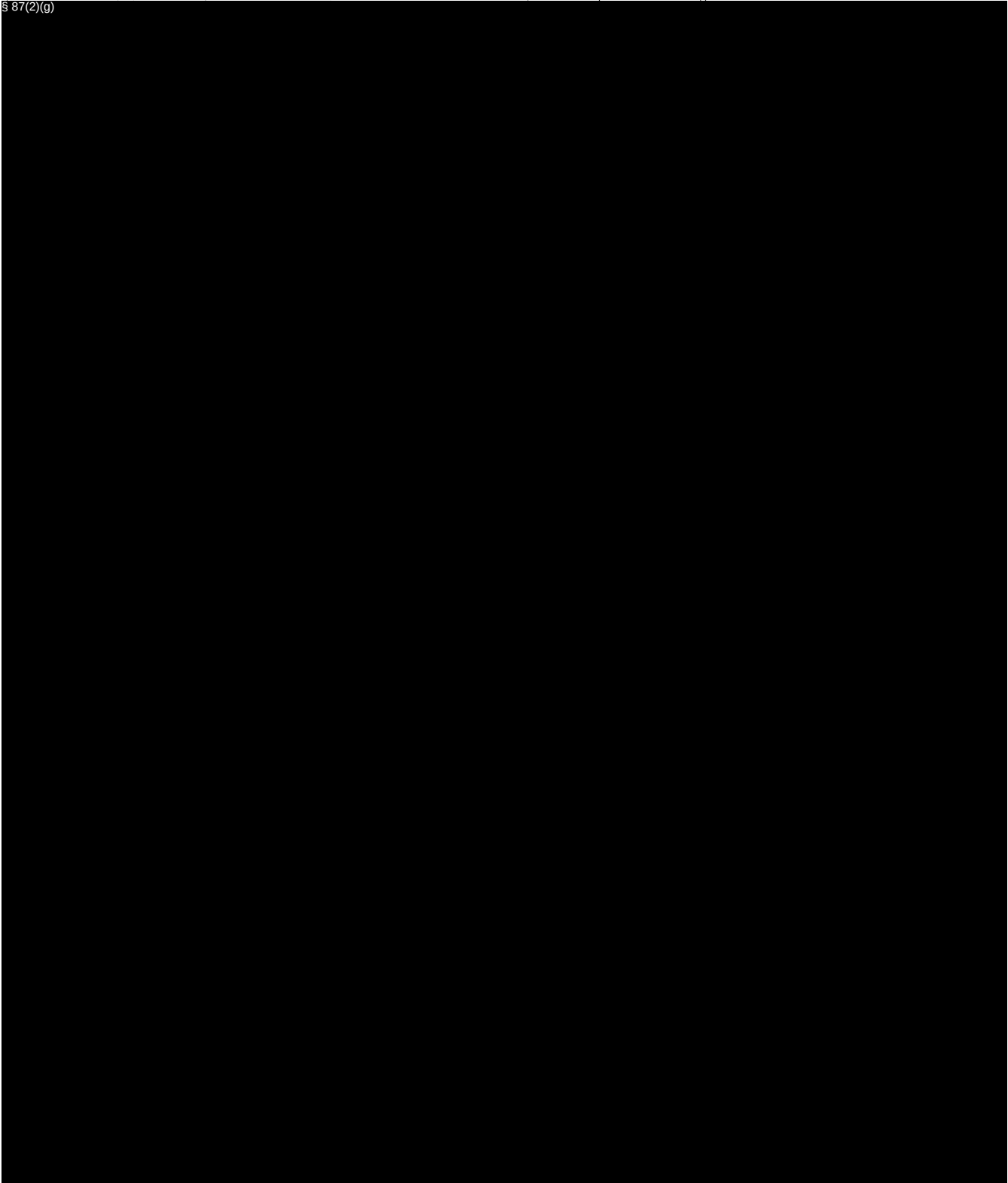
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§ 87(2)(g)

Remarks:

ALLEGATION A: FORCE: PUSH

§ 87(2)(b) victim, stated when he exited the vehicle he was shoved against the vehicle by SGT. Pilecki who approached him first while P.O. Sullivan remained behind him. § 87(2)(g) § 87(2)(b) § 87(2)(b), complainant, who stated the first officer to approach § 87(2)(b) pushed him and was intimidating § 87(2)(b) Both Sgt. Pilecki and P.O. Sullivan confirmed that Sgt. Pilecki was the first officer to approach § 87(2)(b) § 87(2)(b) Although the complainant's description fit P.O. Sullivan she stated it was the first officer who approached the vehicle who became aggressive with the victim, § 87(2)(b)

ALLEGATION B: ABUSE: THREAT OF ARREST

§ 87(2)(b) victim, alleges when Sgt. Pilecki approached the vehicle Sgt. Pilecki threatened to arrest him for bumping into the rear of their vehicle. The complainant, § 87(2)(b) stated she did not hear the officers threatened to arrest § 87(2)(b) Sgt. Pilecki stated when he approached § 87(2)(b) he told him that it was extremely reckless thing to do to actually bang into a moving vehicle. He further told § 87(2)(b) that someone could have been severely injured when he banged into the rear of their car. However, he denied threatening to arrest § 87(2)(b) for hitting the rear of their vehicle.

ALLEGATION C: DISC.: CURSE

Complainant, § 87(2)(b), stated when the officer approached the vehicle he (subject officer) said to § 87(2)(b) "Who the fuck you think you are" and also said "What the fuck you think you're doing". § 87(2)(b) victim, stated the officer cursed at him but was not specific to what the subject officer (Sgt. Pilecki) said to him. § 87(2)(b) stated she was unaware the individual was a police officer until they display their shields.

§ 87(2)(g)

§ 87(2)(g) § 87(2)(b) Sgt. Pilecki confirmed he approached § 87(2)(b) and requested § 87(2)(b) driving papers. § 87(2)(b) stated that P.O. Sullivan had no contact with him during this incident and remained behind Sgt. Pilecki. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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